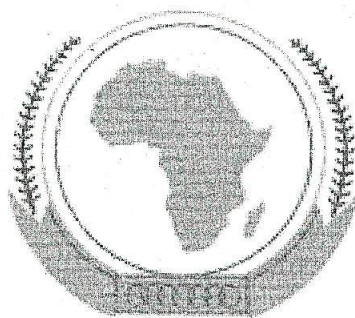




STATUTE OF THE AFRICAN UNION SPORT COUNCIL

PREAMBLE

We, Member States of the African Union:

RECALLING the objectives and principles enshrined in the Constitutive Act of the African Union;

ALSO RECALLING the Executive Council decision EX.CL/Dec 680(XX) of January 2012, which dissolved the Supreme Council and established African Union Sport Council;

WHEREAS Sport, as an element of Culture and a major phenomenon in contemporary civilization, plays a powerful role in human upbringing, the strengthening of national cohesion and the rapprochement of peoples;

WHEREAS Member States have, in this respect, increased their efforts to integrate sport and Sport for Development and physical activities in their respective development plans;

WHEREAS Member States are concerned over the need to actively contribute toward the establishment of a New International Sports Order that is balanced and democratic;

WHEREAS Member States are resolute to pursue and intensify the campaign against all forms of racial, religious and political discrimination in sports;

WHEREAS in order to safeguard and ensure the gradual triumph of these values as well as to foster sports development in Africa, there is strong need for unity, close and dynamic co-operation between African States;

WHEREAS Member States are further convinced that in order to achieve that goal, it is necessary to establish a Specialized Technical Office to direct, co-ordinate and superintend activities of the entire African Sport Movement;

NOW HEREBY AGREE AS FOLLOWS:

Article 1 Definitions

For the purpose of the present Statutes:

"AASC" means Association of African Sports Confederations;

"Africa Sports Movement" means a forum comprised of the African Union, the Association of African Sports Confederations and Association of National Olympic Committees of Africa and other Stakeholders;



"African Games" means the Multi-Sport discipline event held after four (4) years;

"AGTC" means African Games Technical Committee;

"ANOCA" means Association of National Olympic Committees of Africa;

"Assembly" means the Assembly of Heads of State and Government of the Union;

"AUSC" means African Union Sports Council;

"Chairperson" means the Chairperson of the AU Commission unless otherwise specified;

"Commission" means the African Union Commission;

"Committee" means a Technical Committee of the AUSC;

"Constitutive Act" means the Constitutive Act of the African Union;

"Executive Council" means the Executive Council of Ministers of the African Union;

"Executive Secretary" means the Executive Secretary of AUSC;

"Member State" means a Member State of the African Union;

"Member" means African Sport Movement (Member of AUSC);

"Representative" means the duly accredited representative of a member of AUSC;

"STC" means the Specialized Technical Committee on Youth, Culture and Sports as established under Article 14 of the Constitutive Act;

"Union" means the African Union established by the Constitutive Act.

Article 2

Establishment and Headquarters

1. The AUSC is hereby established as a Specialized Technical Office of the Union.
2. The Headquarters of the AUSC shall be in Yaoundé, Republic of Cameroun, unless otherwise decided by the Assembly.
3. A Headquarters Agreement shall govern the relations between the Union and the Host Country.



Article 3 Purpose

The AUSC shall be responsible for the co-ordination of the Africa Sports Movement and the forum for concerted action between Member States for the promotion and development of Sports and development through Sport in Africa.

Article 4 Composition

The AUSC shall be composed of Member States, the African Union Sport Development Regions, ANOCA, AASC, and other continental sports bodies recognized by AUSC.

Article 5 Functions

The AUSC shall:

- a) service the sport policy development needs of the AU;
- b) promote sport as a fundamental human right to be enjoyed by all;
- c) promote and defend sport development and development through sport;
- d) grant membership of the AUSC subject to approval by the STC;
- e) ensure that Member States fund sport development;
- f) ensure that Member States develop sport policies, programmes, systems and structures;
- g) facilitate the development of relevant sport structures in Member States and the alignment of national sport policies and strategies to the AU Sport Policy Framework and other continental sport policies to achieve harmonization and coordination of sports development;
- h) facilitate sport development on the African continent in terms of skills development, social interaction, and communication of relevant information on programmes in combating HIV and AIDS and anti-doping programmes, as well as to promote person-to-person development programmes;
- i) enhance the profile and status of the African Games to attract high profile athletes to ensure that it becomes a qualifier for the Olympic Games and other international events;
- j) increase the revenue of the African Games and institute transparent mechanisms regarding the proceeds raised from the marketing and sponsorship of the African Games;



- k) promote cooperation with international sports organizations with a view to solicit sponsorship, funding and training of sportsmen and women;
- l) ensure that ANOCA and AASC play their assigned roles within the new African Union Sports Council;
- m) promote and defend a culture of good governance, democratic principles and institutions, popular participation, human rights and freedoms as well as social justice in the domain of sport;
- n) promote, advocate and defend a culture of gender equality in the domain of sport;
- o) promote and strengthen the institutional, human and operational capacities of African civil society.

Article 6

Working languages

The working languages of AUSC shall be those of the Union.

Article 7

Emblem and Flag

1. The Emblem of the AUSC shall represent the outline of African Union Emblem with eight rings and a flame superimposed on it.
2. The Flag of the AUSC shall be that of the African Union stamped with the AUSC Emblem.

Article 8

Organs of the AUSC

The AUSC shall be governed by the following bodies:

- a) The STC as provided for in its rules of Procedure
- b) The Sport Advisory Board
- c) The Technical Committees;
- d) The African Union Sport Development Regions;
- e) The Secretariat of the AUSC.

Article 9

Composition of the Sport Advisory Board

The Sport Advisory Board shall be composed as follows:



- a) Chairpersons of the five (5) AU Sports Development Regions at the expert level;
- b) Africa Union Commission represented by the Department responsible for Sport;
- c) Executive Secretary of the AUSC;
- d) Two (2) representatives from ANOCA;
- e) Two (2) representatives from AASC;
- f) Chairperson's of the Technical Committees.

Article 10

Functions of the Sport Advisory Board

The Sport Advisory Board shall:

- a) consider different aspects of sport on the continent;
- b) recommend strategic/activity plans for the Commission and Regional Economic Communities;
- c) advise the STC on emerging issues and other matters related to sport;
- d) advise the Commission on the implementation of decisions by Member States;
- e) make appropriate recommendations on the Host Country of the African Games for consideration by the STC;
- f) recommend members of the Technical Committees to the STC for consideration;
- g) carry out any other functions assigned to it by the STC.

Article 11

Meetings of the Sport Advisory Board

1. The Sport Advisory Board shall meet twice a year in ordinary session at the Headquarters of AUSC or in any other Member State upon the invitation of the Member State.
2. In the event the session is held outside the Headquarters of the AUSC, the Host Country shall be responsible for all extra expenses incurred by the AUSC as a result of holding the session outside the Headquarters.
3. At the request of two-thirds of its members, the Chairperson of the Sport Advisory Board shall convene an extraordinary session on a specific agenda communicated to all members at least fifteen (15) days in advance.



4. Each Member of the Sport Advisory Board shall bear the cost of his/her participation in all meetings of the Board.

Article 12
Quorum of the Sport Advisory Board

A simple majority of members of the Sport Advisory Board shall be required to constitute a quorum for any ordinary or extraordinary session.

Article 13
Decision Making of the Sport Advisory Board

1. Decisions of the Sport Advisory Board shall be taken by a simple majority of members present.
2. Each member shall have one vote.
3. In the event of a tie, the Chairperson of the Sport Advisory Board shall have the casting vote.

Article 14
Bureau of the Sport Advisory Board

1. The Sport Advisory Board shall, on the basis of rotation and geographical distribution, elect, after due consultations, a Chairperson, a Vice-Chairperson and a Rapporteur.
2. The Bureau shall be elected by a simple majority.
3. The Members of the Bureau shall hold office for a period of two (2) years renewable only once.

Article 15
Functions of the Chairperson of the Sport Advisory Board

1. The Chairperson shall:
 - a) preside over all the proceedings of the Ordinary and Extraordinary sessions;
 - b) open and close the sessions;
 - c) submit for approval the records of the sessions;
 - d) guide the proceedings;
 - e) submit to a vote matters under discussion and announce the results of the vote taken;
 - f) rule on points of order.



- g) ensure order and decorum during the proceedings of the sessions.
- 2. In the absence of the Chairperson or in case of a vacancy, the vice-Chairperson or in his/her absence, the Rapporteur shall act as the Chairperson.
- 3. The provisions of the present Article are applicable to the Chair of the Bureau of the Technical Committees and ad hoc working group, which may be set up by the Board and the Technical Committees.

Article 16

Technical Committee on Sport for Development

- 1. The Technical Committee on Sport for Development shall comprise of the following members:
 - a) A Representative from each AU Sport Development region;
 - b) A Representative from ANOCA;
 - c) A Representative from AASC;
 - d) A Representative from AUSE Secretariat;
 - e) A Representative from Women in Sports Associations;
 - f) A Representative from Sport for Development and Peace Organization;
 - g) A Representative from School and Tertiary Sport Association;
 - h) A Representative from Association of African Paralympic;
 - i) A Representative from African Region Anti-Doping;
 - j) A Representative from Sport for All;
 - k) A Representative from Military Sport (OSMA).
- 2. The Sport Advisory Board may review the composition of this Technical Committee.
- 3. The Technical Committee on Sport for Development shall elect from among its members a Chairperson who shall be a Representative of one of the AU Sport Development Regions for a term of two (2) years on the basis of rotation and geographical distribution. The Chairperson shall be assisted by a Vice-Chairperson and a Rapporteur.
- 4. The Technical Committee on Sport for Development shall carry out the following functions:
 - a) Facilitate training of professionals in sport science, medicine, anti-doping and related fields of study;



- b) Advocate and promote anti-doping programmes on and off the field of play;
- c) Conduct education and awareness campaigns on communicable/transmittable diseases;
- d) Ensure and monitor inclusivity and equity in sports including promoting the involvement of women, the girl child and people with disabilities not only as athletes but also as technical officials and administrators;
- e) Design and ensure the development and the implementation of sport development and educational programmes, for women, the girl child and people with Disabilities;
- f) Advocate for local manufacturing of sport equipment;
- g) Create awareness and campaign for the manufacture of products required by people with disabilities;
- h) Design programmes for sport and development through sport and ensure that these are implemented;
- i) Develop sport education and accreditation criteria and systems to be implemented on the Continent;
- j) Focus on crisis areas affected by man-made or natural calamities in Africa to produce strategic plans for the introduction of Sport and Recreation for victims in these areas;
- k) Aim at the achievement of Agenda 2063 through sport;
- l) Develop Continental sport law and Policy; and
- m) Carry out any other functions assigned to it by the Sport Advisory Board or the STC.

Article 17 **Technical Committee for Finance**

1. The Technical Committee for Finance shall be composed as follows:
 - a) One (1) Representative from each of the five (5) AU Sport Development Regions;
 - b) AUSC Executive Secretary;
 - c) ANOCA representative;
 - d) AASC representative;
 - e) One (1) AUSC Finance Officer.
2. The Sport Advisory Board may review the composition of this Technical Committee.



3. The Technical Committee on Finance shall elect from among its members a Chairperson who shall be a Representative of one of the AU Sport Development Regions for a term of two (2) years on the basis of rotation and geographical distribution. The Chairperson shall be assisted by a Vice-Chairperson and a Rapporteur.
4. The functions of the Finance Technical Committee shall be to:
 - a) Consider financial matters for the AUSC, including income from the African Games to be paid to the AUSC ;
 - b) Receive and consider statements from the AUSC;
 - c) Consider the operational and programmes budgets of the AUSC;
 - d) Mobilize Resource;
 - e) Carry out any other functions assigned to it by the Sport Advisory Board or the STC.

Article 18
Technical Committee for the African Games

1. The African Games technical committee shall be composed as follows:
 - a) AUSC Executive Secretary;
 - b) ANOCA Representative;
 - c) Representative of the Commission Department responsible for Sport;
 - d) AASC Representative;
 - e) One (1) Representative of each of the 5 regions at Expert level;
 - f) Seven (7) Experts recommended by the Executive Secretary of AUSC and appointed by the Sport Advisory Board.
2. The Sport Advisory Board may review the composition of this Technical Committee.
3. The Technical Committee for the African Games and Marketing shall elect from among its members a Chairperson who shall be a Representative of one of the AU Sport Development Regions for a term of two (2) years on the basis of rotation and geographical distribution. The Chairperson shall be assisted by a Vice-Chairperson and a Rapporteur.
4. The functions of the Technical Committee for the African Games shall be to:
 - a) propose objective criteria for the evaluation of bidding files pertaining to the organization of the African Games;



- b) establish a standing follow up/evaluation mechanism for the preparations of the Games;
- c) update the Technical Regulations and ensure their consistency with the General Regulations of the African Games and Consider and approve the Games manuals;
- d) establish and implement effective systems to generate adequate revenue for the successful hosting of the African Games;
- e) recommend guidelines for bidding and hosting of the African Games;
- f) report on the preparation, organization and hosting of the African Games by the local Organizing Committee (COJA);
- g) review and consider the Memorandum of Understanding (MOU) between AUC, ANOCA and AASC on the organization and management of the African Games;
- h) approve the required technical, administrative and operational rules, policies, structures, plans, manuals and programmes as well as provide technical advice on their execution, for the successful hosting of the African Games in line with international standards;
- i) ensure that the African Games are organized and hosted in accordance with the African Games Protocols;
- j) in collaboration with the Sports Confederations, approve equipment and materials, upon recommendation by competent Confederations;
- k) oversee coordination meetings during the African Games;
- l) provide strategic leadership on all aspects of the African Games and provide interface to ANOCA, AASC other sports confederations and agencies;
- m) work closely with ANOCA and AASC to ensure successful preparation and hosting of the African Games;
- n) promote the African Games as the pinnacle and the most visible African Sport event of African Sport Architecture (ASA) and motivation for Africa's elite athletes;
- o) ensure that the African Games brand is consistent with the expectations of stakeholders inclusive of Continental and International Federations, Africa Union Commission, Member States, sponsors, and Members of the African Sport Movement;
- p) develop and implement strategies, policies and best practices for the African Games in line with international sporting standards;
- q) develop and implement a comprehensive Marketing plan to ensure growth of the African Games brand in the continent and beyond;
- r) define benchmarks of the African Games legacy and work together with Local Organizing Committee (COJA), host cities, governments and



- relevant authorities to identify appropriate legacy objectives and desired impacts;
- s) define athlete and officials' qualifying and performance standards for the African Games in line with International Federations trends and standards;
 - t) ensure a professional coordinated and management process from the bidding phase, through planning and delivery of the African Games contributing to enhancing the profile of the Architecture for Sport in Africa;
 - u) promote and encourage best practices, build on the success of the Games, creative solutions and facilitate knowledge transfer to future host countries of the African Games;
 - v) manage and supervise broadcasting and media rights and ensure maximum coverage of the Games in Africa and beyond, execute international marketing of the Games, monitor and assist COJA in planning and executing its Games Marketing Programme;
 - w) stipulate Games participating fees and all the stipends within the COJA system;
 - x) ensure the Games trademarks and or copyrights are registered and liaise with host government and host city authorities for adequate and legal protection of the trademarks and of the Games sites;
 - y) appoint the technical Disciplinary Committee per each sport code and be the final Board of Appeal;
 - z) be the disciplinary committee of the Games with the Secretariat being the Ultimate Board of Appeal;
 - aa) oversee Games Committees and provide proper guidance and assistance to ensure effective execution of the committees' duties;
 - bb) ensure that the closure of the Games is properly done within the stipulated timeframe as provided for in the Protocol Agreement;
 - cc) recommend deposit fee to be paid by the African Games host country;
 - dd) carry out any other functions assigned to it by the Sport Advisory Board or the STC.

Article 19

Meetings of the Technical Committees

1. The Technical Committees shall meet in ordinary session once a year at the Headquarters of AUSC or in any other Member State, upon invitation of the Member State.



2. In the event the session is held outside the Headquarters of the AUSC, the Host Country shall be responsible for all extra expenses incurred by the AUSC as a result of holding the session outside the Headquarters.
3. At the request of two-thirds of its members, the Chairperson of a Technical Committee shall convene an extraordinary session on a specific agenda communicated to all members at least fifteen (15) days in advance.
4. Each Member of the Technical Committees shall bear the cost of his/her participation in all meetings of the Committee.

Article 20 **Quorum for the Technical Committees**

A simple majority of members of technical committees shall be required to constitute a quorum for any ordinary or extraordinary session.

Article 21 **Decisions of Technical Committees**

1. Decisions of Technical Committees shall be taken by a simple majority of the members present.
2. Each member shall have one vote.
3. In the event of a tie, the Chairperson of a Technical Committee shall have the casting vote.

Article 22 **Structure of the AUSC Secretariat**

1. The Secretariat shall consist of an Executive Secretary who shall be assisted by the necessary administrative, professional and technical staff.
2. The Executive Secretary shall be appointed by the Chairperson of the Commission in accordance with the Staff Rules and Regulations of African Union, upon recommendation of the Sport Advisory Board.
3. The Staff Members of the Secretariat shall be appointed in accordance with the Staff Rules and Regulations of African Union.
4. The structure of the Secretariat shall be determined in accordance with the rules and procedures in the African Union.



Article 23
Functions of the Executive Secretary

1. The Executive Secretary shall:
 - a) oversee the management and administration of the AUSC Secretariat.
 - b) attend the meetings of the Sport Advisory Board and the STC.
 - c) Prepare, circulate and keep the records of all meetings of the Sport Advisory Council.
 - d) submit a regular progress reports and financial statements to the Sport Advisory Board and STC.
2. The Executive Secretary shall be answerable to the Department responsible for Sport.

Article 24
Composition of the African Union Sport Development Regions

1. The African Union Sport Development Regions shall be aligned to the geographical distribution of the African Union as approved by the Executive Council and endorsed by the Assembly of the Union.
2. There shall be five (5) African Union Sport Development Regions, namely, Northern, Western, Central, Eastern, and Southern, composed as follows:
 - a) **REGION 1 (Northern Africa):** Algeria, Egypt, Libya, Mauritania, Tunisia and Saharawi Arab Democratic Republic;
 - b) **REGION 2 (West Africa):** Benin, Burkina Faso, Capo Verde, Cote d'Ivoire, Gambia, Ghana, Guinea, Guinea Bissau, Liberia, Mali, Niger, Nigeria, Senegal, Sierra Leone and Togo;
 - c) **REGION 3 (Central Africa):** Burundi, Cameroon, Central African Republic, Chad, Congo, Democratic Republic of Congo, Equatorial Guinea, Gabon and Sao Tome & Principe;
 - d) **REGION 4 (Eastern Africa):** Comoros, Djibouti, Eritrea, Ethiopia, Kenya, Madagascar, Mauritius, Rwanda, Seychelles, Somalia, South Sudan, Sudan, Tanzania and Uganda;
 - e) **REGION 5 (Southern Africa):** Angola, Botswana, Lesotho, Malawi, Mozambique, Namibia, South Africa, Swaziland, Zambia and Zimbabwe.



Article 25
Organs of the Union Sports Development Regions

1. Each African Union Sport Development Region shall have the following organs:
 - a) The Conference of Ministers of Sport of the Region;
 - b) Executive Committee of Experts from Member States of the Region; and
 - c) The Secretariat of the AU Sport Development Regions (Regional Secretariat).
2. Each Region shall develop its own Strategies, structures, programmes and resource mobilization mechanisms within the objectives and mandate of the AUSC.
3. The Representatives of AUSC Secretariat, ANOCA, Sport Confederations and Associate Sports Bodies will attend the meetings and activities of the Organs of the AU Sport Development Regions as members in an advisory capacity.
4. The Regional Secretariat shall be the administrative structure of the Region responsible for carrying out the tasks inherent in the missions assigned to the Regions and shall submit annual report to the AUSC. Each Region will decide on the Host Country of the Permanent Regional Secretariat.

Article 26
The African Games

1. For purposes of promoting high performance African Sports and enhancing sporting and cultural exchanges between Member States, a multi-disciplinary sport competition known as the "AFRICAN GAMES" is hereby established under the ownership and patronage of the African Union.
2. The African Games shall be organized under the patronage of the International Olympic Committee (IOC) which recognizes the said Games as CONTINENTAL GAMES for the African Continent.
3. The African Games shall be the exclusive property of African Union who shall hold all rights relating to their organization, exploitation, broadcast and reproduction by any means whatsoever.
4. The African Games shall be celebrated once every four (4) years and one (1) year before the Olympic Games.
5. The maximum duration of the Games shall be fifteen (15) days.



6. The organization of the African Games shall be governed by rules and regulations adopted by the STC and in conformity with the Olympic Charter.
7. The AUSC may partner with ANOCA and AASC in the organization and management of the -African Games.
8. The STC shall recommend for designation by the Assembly, a Member State to host the African Games.
9. An Agreement outlining the organizational modalities for each edition of the African Games shall be concluded between the Union and the Host Country.

Article 27 Cooperation

1. For purposes of enhancing the development of sports and Olympism in Africa and consolidating cohesion among the various structures of the African Sports Movement, the AUSC may recognize as a confederation or a continental association, organizations that either administer one or several sports disciplines in Africa or whose statutes and activities are in conformity with either the AUSC Statutes or the Olympic Charter. In such a case, AUSC may establish co-operation relations with them.
2. AUSC may grant ANOCA and African Sports Confederations political support and material assistance necessary for the development of their activities.
3. ANOCA, AASC and associations under their jurisdiction shall recognize the authority and primacy of AUSC over the entire African Sports and Olympic Movement.

Article 28 Budget

1. The operational budget of AUSC shall constitute an integral part of the regular budget of the Union;
2. AUSC may mobilize resources from extra-budgetary sources in accordance with the AU Financial Rules and Regulations.
3. For purposes of attaining its objectives, AUSC shall have a budget broken down as follows:
 - a) Operational budget;
 - b) Programme budget; and
 - c) African Sports Development Funds (ASDF);



4. The budget of AUSC shall be submitted for approval to the Policy Organs of the Union in accordance with the relevant provisions of the AU Financial Rules and Regulations.

Article 29 **African Sports Development Funds**

The African Sports Development Funds (ASDF) is hereby established and it shall be funded through:

- a) Voluntary contributions from Member States;
- b) Sundry commissions and fees accruing from sports events;
- c) Grants in cash or kind from Governments, national or international institutions desirous to contribute toward sports development in Africa;
- d) Revenue from the African Games Deposit Fee and marketing and sponsorship of the Games.

Article 30 **Expenditure and Accounting**

1. Revenue of AUSC shall cover:
 - a) Expenses incurred from all AUSC activities;
 - b) Recurrent expenses of the Secretariat;
 - c) Assistance that AUSC may grant under varied forms and more especially as subsidies to AU Sports Development Regions, ANOCA, African Sports Confederations and to any other organization that contribute toward the enhancement of sport in Africa;
 - d) Training, study and research grants awarded to nationals of Member States.
2. Revenue and expenditure shall be recorded in one or several accounts opened on behalf of the AUSC in one or several banks established in the Host Country of the Organization's Headquarters.
3. The Revenue and expenditure of the AUSC shall be governed by the Financial Rules and Regulations of the Union.

Article 31 **Transitional Arrangements**

Following the adoption of this Statute by the Assembly, the Chairperson of the Commission, in close collaboration and in consultation with the Host Country and the Members of the Bureau of the STC shall take the necessary measures to



establish an interim structure and appoint the required staff in order to facilitate the speedy establishment of AUSC in accordance with the present Statutes.

**Article 32
Amendments**

1. The present Statute may be amended by the Assembly. Any Member State proposing an amendment shall submit the proposed amendment, in writing to the Chairperson of the Commission who shall circulate the proposed amendments to all Member States three (3) months before the Assembly's session that will consider the proposed amendment.
2. The amendment shall enter into force upon adoption by the Assembly.

**Article 33
Entry into Force**

1. This Statute shall enter into force upon its adoption by the Assembly of the Union.
2. This Statute, of which the Arabic, French, English and Portuguese texts are equally authentic, shall be deposited with the Chairperson of the Commission.

**ADOPTED BY THE TWENTY-SIXTH ORDINARY SESSION OF
THE ASSEMBLY IN ADDIS ABABA, ETHIOPIA**

31 JANUARY 2016

